

CRIMINAL LAW

**Burdens of Proof, Standards &
Presumptions**

Legal Burden

CROWN

Legal Burden

{win on issue}

DEFENCE

Presumption

{win on issue}

BRD

Beyond a Reasonable Doubt

Legal Burden

CROWN

{win on issue}

{win on issue}

{win on issue}

BRD

BRD

BRD

DEFENCE

{win on issue}

{win on issue}

{win on issue}

Legal Burden – *Reverse Onus*

CROWN

Presumption

{win on issue}

BoP

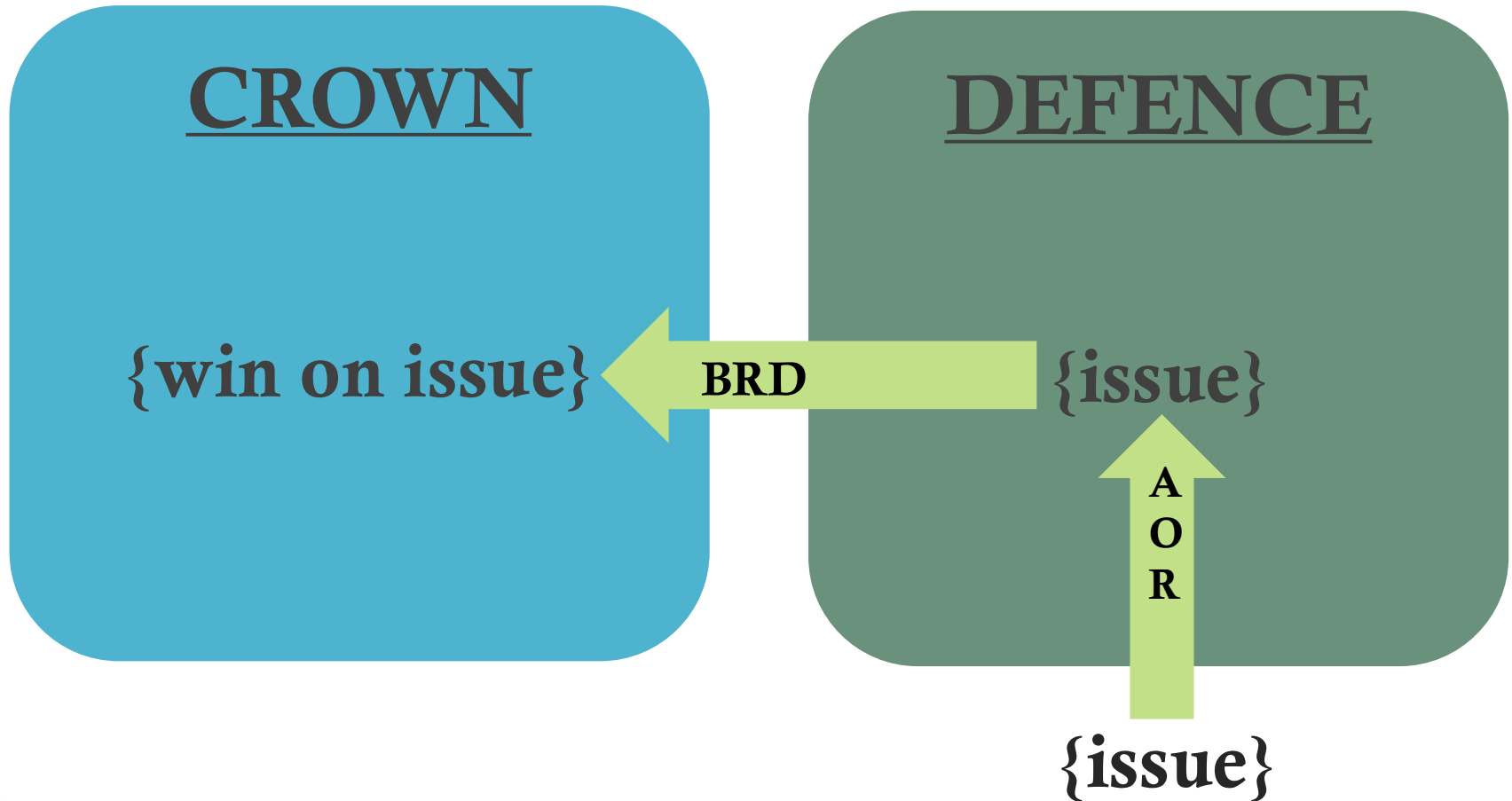
DEFENCE

Legal Burden

{win on issue}

Balance of Probabilities

Evidentiary Burden

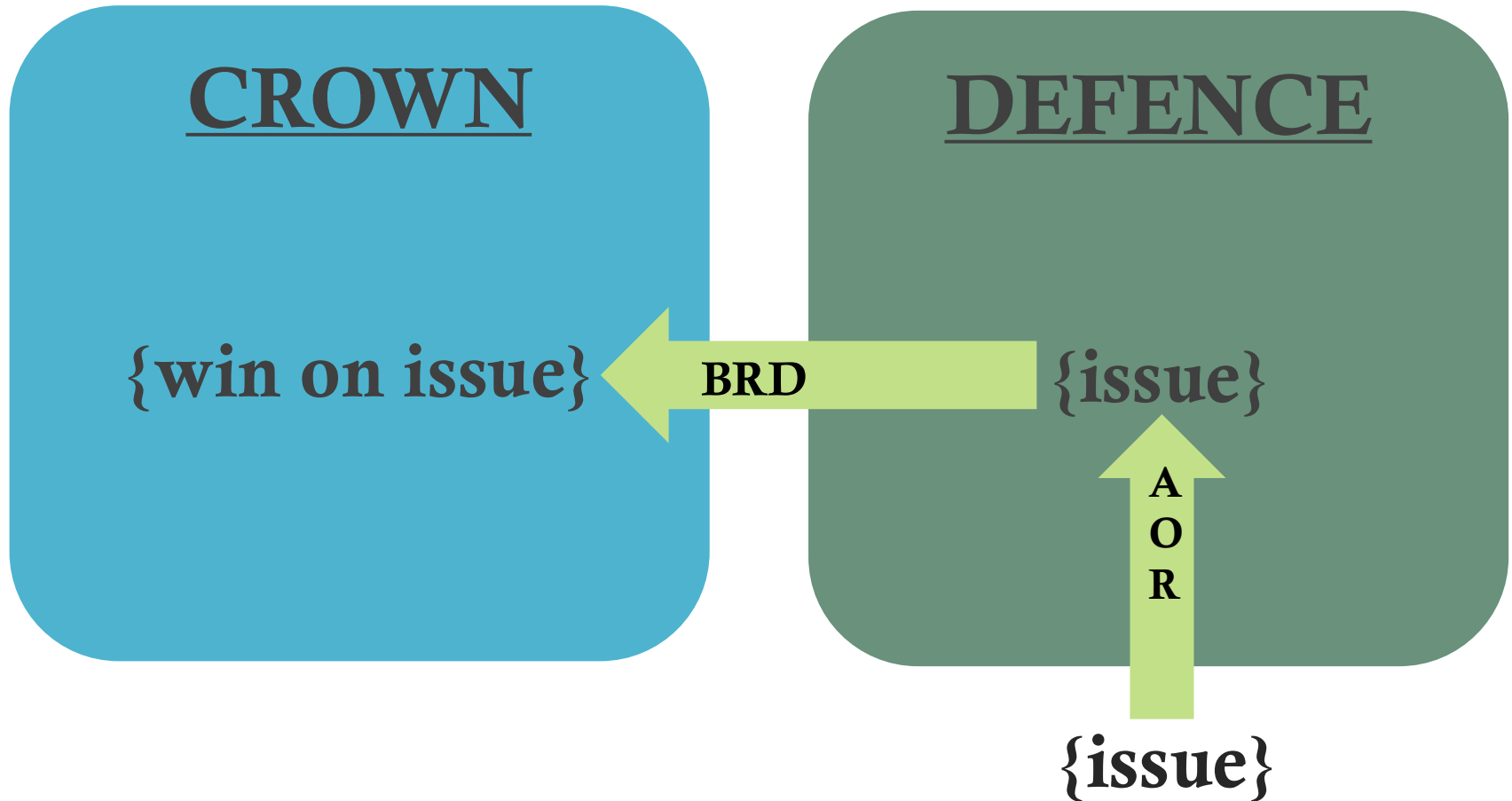


The Air of Reality Test

“The test is whether there is evidence on the record upon which a properly instructed jury acting reasonably could acquit.”

(R. v. Cinous)

Evidentiary Burden



Tactical Burden

